

The declaration must also comply with CRC 3.1362(d) if the moving papers are served on the client by mail. The declaration must state facts showing that the service address is the current residence or business address of the client, or that the service address is the last known residence or business address of the client, and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before filing the motion to be relieved as counsel. As used in the Rule, “current” means that the address was confirmed within 30 days before the filing of the motion. Merely demonstrating that the notice was sent to the client’s last known address and was not returned is not, by itself, sufficient to demonstrate the address is current (CRC 3.1362(d)). If service is by mail, CCP §1011(b) applies.

The Motion, Declaration, and Proposed Order must be served on the client and all parties who have appeared in the case (CRC §3.1362(d)). The Proposed Order Granting Attorney’s Motion to Be Relieved as Counsel must be prepared on Judicial Council Form Civil MC-053, and must be lodged with the Court with the moving papers (CRC 3.1362(e)). The Order must specify all hearing dates scheduled in the action, including the date of trial (if known). After the order is signed, a copy of the signed order must be served on the client and all parties that have appeared in the action. The Court will delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the Court.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504830	VINCENT VS UBA	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling: Sustain. No timely opposition. 30 days leave to amend.

The SAC presented by Plaintiff is uncertain on its face, presenting insufficient statements to constitute causes of action to which the defendant may provide a defense. The particularity required in pleading facts depends on the extent to which the defendant, in fairness, needs detailed information that the Plaintiff can conveniently provide. *Doheny park Terrace Homeowners Ass’n, Inc. v. Truck Insurance Exchange* (2005) 132 Cal. App. 4th 1076.

Further, in the second alleged cause of action, plaintiff has failed to properly allege a cause of action for injunctive relief. An injunction is not a cause of action but is solely a remedy; a cause of action must exist before a judge may grant a request for injunctive relief *Venice Coalition to Preserve Unique Community Character v. City of Los Angeles* (2019) 31 Cal. App. 5th 42, 54 and *Ivanoff v. Bank of America, N.A* (2017) 9 Cal. App. 5th 719, 734.

As to the Second, Fourth, Seventh and Eighth Causes of action, plaintiff has failed to properly allege the elements of fraud. Fraud allegations must be pleaded with more detail than other causes of action *Heritage Pacific Finance, LLC v. Monroy* (215 Cal. App. 4th 972, 989.) The policy of liberal construction of pleadings does not apply to fraud causes of action. The facts constituting the fraud, including every element of the cause of action, must be alleged “factually and specifically,” i.e., the Plaintiff must plead facts showing the defendant’s misrepresentation (or omission that the defendant had a duty to disclose), defendant’s knowledge of falsity (“scienter”), the defendant’s intent to defraud (i.e., to induce the plaintiff’s reliance on the misrepresentation), the plaintiff’s justifiable reliance, and the resulting damage/ *Kalnoki v. First Am. Trustee Servicing Solutions, LLC* (2017) 8 Cal. App. 5th 23, 35.

As to the Third Cause of Action for Quiet Title, Plaintiff has failed to allege the proper elements of a Quiet Title action and supporting evidence. CCP 761.020

As to the Fifth Cause of Action for Breach of Contract, Plaintiff has failed to properly allege the elements of Breach of Contract and supporting evidence. A breach of contract is not actionable without damages, except for a potential award of nominal damages. *Levy v. Only Cremations for Pets, Inc.* (2) 57 Cal. App. 5th 203, 214. A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated by reference—or by its legal effect, i.e., by alleging the substance of its relevant terms *Construction Protective Services, Inc. v TIG Specialty Insurance Co.* (2002) 29 Cal 4th 189, 198-199.; *Heritage Pacific Finance, LLC v. Monroy* (2013) 215 Cal. App. 4th 972, 993 (alleging substance of contract’s relevant terms is more difficult because it requires careful analysis of instrument, comprehensiveness in statement, and avoidance of legal conclusions). An oral contract may be pleaded generally as to its effect, because alleging the exact words is rarely possible *Scolinos v. Kolts* (1995) 37 Cal. App. 4th 635, 640-641. Plaintiff must allege the consideration for the contract, however, because the statutory presumption of consideration does not apply to an oral contract *Stevenson v. San Francisco Housing Authority* (1994) 24 Cal. App. 4th 269, 284.

As to the Sixth Cause of Action for Breach of the Covenant of Good Faith and Fair Dealing, this appears to rely on the same acts and seek the same damages or other relief already claimed in the cause of action for breach of contract, making this superfluous 57 Cal. App. 5th at 215.

Plaintiff shall have 30 days to amend the SAC.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504830	VINCENT VS UBA	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling: Moot in light of the Court’s ruling on #3 above.